

of different judges, *id.* at 14, and criminal prosecution of magistrates and judges, *id.*

This Court has repeatedly recognized that "the congressional scheme . . . makes the federal courts the primary guardians of constitutional rights . . .," *Steffel v. Thompson*, 415 U.S. 452, 463 (1974) (quotation omitted), and that through congressional enactment of § 1983 lower federal courts "became the *primary* and powerful reliances for vindicating every right given by the Constitution . . .," *id.* at 464 (quotation omitted) (emphasis in *Steffel*). Federal courts must be willing to step in "where the state courts [are] unable or unwilling to protect federal rights." *Allen v. McCurry*, 449 U.S. 90, 101 (1980). To prevent them from doing so by allowing judicial immunity to bar prospective relief would, as Judge Friendly has observed, "leave without a remedy a significant class of the deprivations of federal rights under color of law that Congress intended federal courts to redress under 42 U.S.C. § 1983 . . ." *Law Students Civil Rights Research Council, Inc. v. Wadmond*, 299 F. Supp. 117, 124 (S.D.N.Y. 1969), *aff'd*, 401 U.S. 154 (1971). As this Court has acknowledged with regard to suits against prosecutors, "the denial of injunctive relief may well result in the denial of any effective safeguards against the loss of protected freedoms . . ., and cannot be justified." *Domkowski v. Pfister*, 380 U.S. 479, 492 (1965). Extension of judicial immunity to prospective relief would have the same result and would be similarly unjustified.

Effective federal court safeguards against the violation of federal constitutional rights must be preserved. To the extent that normal channels of appellate review would not suffice to address, much less to remedy, a constitutional violation, the federal courts must retain the

power to do so through prospective relief against state magistrates and judges.¹⁸

- B. Petitioner and her *amici* offer no countervailing justification for an extension of judicial immunity, but rather a proper analysis of the factors they discuss further militates against any such extension.

Petitioner and her *amici* offer three basic arguments to support the extension of judicial immunity. These arguments are: first, that judicial immunity is historical; second, that the failure not to extend judicial immunity will result in harmful consequences to the judiciary; and third, that judicial officers are like legislators. None of these arguments provides any solid ground upon which to base, much less justify, the requested extension of immunity.

1. *The historical derivation and treatment of judicial immunity support its limitation to damages awards.*

Though it is not to be disputed that judicial immunity preceded our democratic form of government, with its common law roots in England's Middle Ages, the actual

¹⁸ Indeed, many scholars would go much farther than Respondents here urge. Most modern scholars of the doctrine of judicial immunity believe that where, as here, a constitutional violation is not subject to timely correction by the usual channels of appellate review, judicial immunity from damages awards should be qualified or abolished. See, e.g., Block, *Stump v. Sparkman and the History of Judicial Immunity*, 1980 DUKE L.J. 879; Kates, *Immunity of State Judges Under the Federal Civil Rights Acts: Pierson v. Ray Reconsidered*, 65 NW.U.L. REV. 615 (1970); Laycock, *Civil Rights and Civil Liberties*, 54 CHI.-KENT L.REV. 390 (1977); Nagel, *Judicial Immunity and Sovereignty*, 6 HASTINGS CONST. L.Q. 237 (1978); Nahmod, *Persons Who Are Not "Persons": Absolute Immunity Under Section 1983*, 28 DEPAUL L.REV. 1 (1978); Rosenberg, *Stump v. Sparkman: The Doctrine of Judicial Impunity*, 64 VA.L.REV. 833 (1978).

purpose for which the immunity developed supports its limitation in the present case. As Professor Block has discussed in some detail,¹⁹ and as other scholars of the doctrine have also noted,²⁰ judicial immunity was founded as a result of the institution of appellate review. In order to discourage the older practice of challenging judgments by challenging the judge, and to enforce the new system, judicial immunity was developed.²¹ It was subsequently expanded by Lord Coke for the purpose of giving one type of rival court an advantage over another.²² In this context Lord Coke first enunciated the now familiar justification of independence of the judiciary, from the Star Chamber and, in fact, from all but "God and the King," further noting that without such immunity, "there will never be an end of causes" *Floyd v. Barker*, 77 Eng. Rep. 1305, 1306-07 (K.B. 1607).

This concern for "an end of causes," to be served by following the appellate system rather than circumventing it by suing the judge collaterally, is reflected in the holdings of this Court in *Bradley v. Fisher*, 80 U.S. (13 Wall.) 335 (1862), and *Pierson v. Ray*, 386 U.S. 547 (1967). In both cases this Court noted the existence of alternative remedies for the aggrieved parties, and actually the parties in *Pierson* had already achieved correction of the unconstitutional convictions at the time they sought damages.²³ Thus, the original purpose for judicial immu-

¹⁹ Block, *Stump v. Sparkman and the History of Judicial Immunity*, 1980 DUKE L.J. 879.

²⁰ E.g., Feinman & Cohen, *Suing Judges: History and Theory*, 31 S.C.L. REV. 201 (1980); Way, *A Call for Limits to Judicial Immunity: Must Judges be Kings in their Courts*, 64 JUDICATURE 390 (1981).

²¹ Block, *supra*.

²² *Id.*

²³ For further discussion on this point, see pages 18-19, *supra*.

ity certainly warrants no expansion of the doctrine, particularly into areas where constitutional violations are incapable of correction through the very appellate process which spawned the doctrine.²⁴

Nor does the history of the doctrine in America give support for extending judicial immunity to suit for prospective relief. Our American jurisprudence, as developed by this Court, has to date always confined judicial immunity to actions for damages while allowing suits for prospective relief against judicial officers. See, e.g., *Mitchum v. Foster*, 407 U.S. 225 (1972); *Boddie v. Connecticut*, 401 U.S. 371 (1971). Indeed, as reflected in this Court's language in *Mitchum v. Foster*, Congress did intend through § 1983 to provide for suits for prospective relief against judicial officers.

The very purpose of § 1983 was to interpose the federal courts between the States and the people, as guardians of the people's federal rights—to protect the people from unconstitutional action under color of state law, whether that action be executive, legislative or judicial. In carrying out that purpose, Congress plainly authorized the federal courts to issue injunctions in § 1983 actions . . .

Id. at 242 (citation and quotation omitted). This recognition led the Court in *Mitchum* to a determination that § 1983 had, therefore, created an exception to 28 U.S.C. § 2283, which otherwise would have barred injunctions against state courts.²⁵ There was no suggestion that any

²⁴ Such has been the conclusion of an apparent majority of scholars of the doctrine, as discussed at pages 23-24, *supra*, and note 18, *supra*. In fact, as discussed in 1 W. HOLDSWORTH, A HISTORY OF ENGLISH LAW 226-39 (7th ed. 1956), judicial immunity did not prevent English courts from enjoining lower court judges.

²⁵ For a more complete discussion of this point, see pages 11-16, *supra*.